

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12 (Hon. Nahal Iravani-Sani)

Hon. Jose S. Franco, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 7/10/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 6	25CV456053	Sudhandshu Juneja vs Lavan Construction	Hearing on Return of Warrant & Order for Examination Judgment Debtor Lavan Construction/CEO Moein Cyrus Poudat (“Defendant”) was ordered to appear in person in Department 20 on January 14, 2026 at 9:01 AM for an Examination where Defendant was to give information regarding a money judgment against Defendant. Because Defendant violated the Court Order by failing to appear at the January 14, 2026 hearing for Examination, the Court issued a Civil Bench Warrant for Defendant’s arrest in the amount of \$5,000.00. That \$5,000.00 Civil Bench Warrant was served on Moein Poudat on February 17, 2026, at which time he signed a written promise to appear in person for an Examination on April 17, 2026 at 9:01 AM in Department 12. On April 17, 2026, the Civil Bench Warrant was set aside by the Court, the parties met and conferred “regarding the OEX” in the jury room, and the matter was continued to July 10, 2026 at 9:00. Accordingly, the parties are ordered to appear in person for this Examination.
--------	------------	--	---

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12 (Hon. Nahal Iravani-Sani)

Hon. Jose S. Franco, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 7/10/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 7	25CV464001	Shari Yuan vs Starbucks Corporation	Hearing on Motion to Change Venue Tentative Ruling from April 15, 2026 (modified): The Court has carefully considered Plaintiff’s reliance on CCP § 395.5 in filing the Complaint in Santa Clara County. That statute permits suit against a corporation in the county where the corporation has its principal place of business, where the contract is made or performed, or where the obligation or liability arises. Plaintiff argues that because Defendant is a foreign corporation that has not designated a principal place of business within California, it may be sued in any county in the state. The Court does not interpret § 395.5 so broadly. The absence of a designated California principal place of business does not render venue proper in every county. Rather, the statute still requires a nexus between the action and the county selected—most commonly where the liability arises. Here, the alleged injury occurred in Kern County, and thus liability arose there. Plaintiff’s showing that Defendant operates numerous retail locations in Santa Clara County does not establish that Santa Clara County is Defendant’s principal place of business within the meaning of § 395.5, nor does it otherwise supply a statutory basis for venue in this county. Nor does the relative convenience of corporate witnesses, including access to airports or transportation infrastructure, provide an independent basis to establish venue where it is otherwise improper. The Court is mindful of Plaintiff’s residence in Santa Clara County, her ongoing medical care, and the presence of supportive witnesses here. Those are legitimate and practical concerns. However, in personal injury actions, a plaintiff’s residence does not determine venue under CCP § 395, and the Court is constrained to apply the governing statutory framework. Because Santa Clara County is not a proper venue under CCP §§395 or 395.5, transfer is mandatory. The Court therefore does not reach the parties’ arguments regarding convenience under CCP §397. Defendant’s motion to change venue to Kern County Superior Court is GRANTED.
--------	------------	-------------------------------------	--